

REGISTER OF WAGE DETERMINATION UNDER		U.S. DEPARTMENT OF LABOR
THE SERVICE CONTRACT ACT		EMPLOYMENT STANDARDS ADMINISTRATION
By direction of the Secretary		WAGE AND HOUR DIVISION
of Labor		WASHINGTON D.C. 20210
		Wage Determination No.: CBA-2022-180
Diane Koplewski	Division of	Revision No.: 0
Director	Wage Determinations	Date Of Last Revision: 03/29/2022

State: Maryland

Area: Montgomery

Employed on DEPT OF THE NAVY NAV FAC ENG CMD contract for REGIONAL 8(a) CUSTODIAL SERVICES FOR NAVAL DISTRICT WASHINGTON.

Collective Bargaining Agreement between contractor: NJS Joint Venture, LLC, and
union: LABORERS' INTERNATIONAL UNION OF NORTH AMERICA Local 572, effective 02/22/2021 through 02/21/2024.

In accordance with Section 2(a) and 4(c) of the Service Contract Act, as amended,
employees employed by the contractor(s) in performing services covered by the
Collective Bargaining Agreement(s) are to be paid wage rates and fringe benefits
set forth in the current collective bargaining agreement and modified extension
agreement(s).

NJS, Joint Venture, LLC
and
Laborers' International Union of North America
Tentative Agreements
Carderock Division of the
Naval Services Warfare Center
W. Bethesda, Maryland

Effective February 22, 2021 through February 21, 2024.

PREAMBLE

This Agreement is by and between NJS, Joint Venture ("NJS") and Laborers' International Union of North America ("Union"). As used hereinafter in this agreement, the term "Employer" shall mean the legal entities that comprise NJS, which are J&J Maintenance, Inc. d/b/a J&J Worldwide Services, Inc. and Nugate Group, LLC.

ARTICLE 1- DECLARATION OF PURPOSE

SECTION 1.1. It is the intent and purpose of the parties hereto to set forth herein the basic agreement covering wages, hours of work and conditions of employment to be observed between the parties hereto, and to provide procedures for prompt, equitable adjustments of alleged grievances to the end that there shall be no work stoppages, strikes or lockouts during the life of this Agreement.

ARTICLE 2- UNION RECOGNITION SCOPE OF AGREEMENT

SECTION 2.1. The Employer recognizes the Union as the sole collective bargaining agent for all custodial Employees employed by the Employer at the Carderock Division of the Naval Services Warfare Center, located in W. Bethesda, Maryland excluding office clerical employees, guards and/or watchmen and supervisors as defined in the National Labor Relations Act, as amended, and excluding all other Employees in accordance with the National Labor Relations Act.

ARTICLE 3- UNION SECURITY/CHECK-OFF

SECTION 3.1. All present Employees who are members of the Union, on the effective date of this Agreement, or join hereafter, shall maintain their membership, or satisfy the financial obligations set by the Union during the term of this Agreement as a condition of continued employment. All present Employees who are not members of the Union shall, as a condition of employment, become members of the Union, or pay to the Union an agency fee as established by the Union, no later than the thirty first (31st) day after the effective date of this Agreement. New Employees hired hereafter shall, as a condition of employment, become members of the Union or pay to the Union an agency fee as established by the Union, no later than the thirty first (31st) day of their employment. Employees meet the requirement of being members of the Union within the meaning of this Article, by tendering the periodic dues and initiation fees uniformly required as a condition of acquiring or retaining membership in the Union, or, in the alternative, by tendering to the Union agency fees, including initiation fees. Failure to comply with this requirement, absent notice and an adequate opportunity to cure, shall result in discharge of the Employee upon written notification to the Employer by the Union, that an Employee has failed to tender the appropriate dues and fees uniformly imposed upon all Employees in the bargaining unit.

SECTION 3.2. The foregoing provision shall not apply in any state to the extent that it may be prohibited by state law. However, the Union is required under this Agreement, to represent all of the Employees in the bargaining unit, fairly and equally, without regard to whether or not an Employee is a member of the Union. The terms of this Agreement have been made for all Employees in the bargaining unit and not for members of the Union only.

SECTION 3.3. It is the current understanding of the parties that the Carderock Division of the Naval Services Warfare Center is located on a federal enclave. If at any time the parties' learn that the location is not a federal enclave, than Section 3.1 becomes void and unenforceable.

SECTION 3.4. The Union agrees to indemnify the Employer for any costs, including legal fees, or liability incurred as a result of the Union's implementation and enforcement of the provisions of this Article.

SECTION 3.5. Upon request, the Employer shall notify the Shop Steward all new hires in the bargaining unit.

SECTION 3.6. New Employees shall be on probation until completion of ninety (90) calendar days of service from the date of hire. During this probationary period, such Employees shall be considered as being on trial subject to immediate dismissal at any time at the sole discretion of the Employer. Discharge during the probationary period shall not be subject to ARTICLE 9 GRIEVANCE AND ARBITRATION. Upon completion of ninety (90) calendar days, such Employee shall enjoy seniority status from the date of hire.

Section 3.7. The Employer shall not engage in any individual agreements with Employees on a mandatory subject of bargaining without prior notification and negotiation with the Union except for confidentiality/non-disclosure agreements, employee handbooks (to the extent it addresses policies not specifically covered by this Agreement), regular new hire paperwork, and as otherwise permitted by this Agreement or required by applicable law.

SECTION 3.8. The Employer will deduct initiation fees and dues from the wages of any Employee covered by this Agreement provided that the Employee submits written authorization for the Employer to make such deductions. **Such authorization forms shall be provided by the Union.** The Union shall advise the Employer of the amount of initiation fees and dues and the manner in which same shall be deducted. The Employer will pay over to the proper officer of the Union the wages withheld for such initiation fees and dues. The remittance shall be accompanied by a list showing individual names, dates hired, and amounts deducted. The total remittances are to be made fifteen (15) days after the last day of the month for which the deductions were made. The amount so withheld, less any amounts due to any improper withholding, shall be reported and paid to the Union monthly.

SECTION 3.9. The Employer shall be the judge of the qualifications of its Employees. Any Employee who has a reasonable basis to dispute the Employer's determination of qualifications as arbitrary and capricious can submit a grievance on that issue.

SECTION 3.10. In the event of termination of employment, there shall be no obligation upon the Employer to collect dues until all other deductions have been made.

ARTICLE 4- MANAGEMENT RIGHTS

SECTION 4.1 The Employer retains the sole right to manage its business and to establish and

to change in its discretion the nature of its operations and the size and the composition of its work force, to hire, establish new jobs, abolish or change existing jobs, or discipline and discharge for cause, to layoff, recall, assign, transfer, promote/demote, employees, to make and enforce rules governing safety, establish rules governing the conduct and discipline of employees, to determine schedules, to create, change or abolish jobs, discontinue operations, to establish productivity and quality standards, to establish or change the shifts and hours that employees work, assign work, layoff employees, evaluate Employee performance and qualifications, transfer or layoff Employees because of lack of work, determine and modify methods, processes, equipment and materials to be employed, and to retain all other rights and prerogatives of management subject only to such restrictions governing the exercise of those rights as are specifically and expressly contained in this agreement.

SECTION 4.2. The Employer reserves the sole and exclusive authority to draft, issue, implement, revise, enforce and withdraw reasonable rules of conduct and/or safety, and reasonable regulations as the Employer deems necessary. However, such rules and regulations shall not be inconsistent with the provisions of this Agreement. The Employer will provide copies of such rules and regulations, and any changes thereto, to the Union. Any infraction of the rules and regulations, once implemented, constitutes just cause for disciplinary action, including discharge.

SECTION 4.3. The list of management rights set forth in this Article is not intended to be nor shall it be construed as a restriction or waiver of any rights of the Employer not listed and not specifically surrendered in this Agreement, whether or not such rights have been exercised in the past.

SECTION 4.4. Supervisors, Employees and others not covered by the terms of this Agreement shall be permitted to perform work covered by this Agreement on an incidental basis and in the following cases:

- In emergency cases;
- To maintain individual currency and proficiency requirements as required by the customer;
- For the instruction of bargaining unit Employees;
- To do experimental work on a new job;
- In cases wherein no bargaining unit Employee who is qualified to perform such work is available.

SECTION 4.5. Any material changes to current working conditions in the exercise of the Employers rights above, or as otherwise required by applicable law, may not be implemented without first notifying the Union and offering the Union a reasonable opportunity to negotiate over the effects of such changes on the bargaining unit.

ARTICLE 5 - ACCESS TO UNIT / SHOP STEWARDS

SECTION 5.1. Shop Stewards

Section A

The Union shall designate no more than one (1) Shop Steward per shift and one (1) alternate per shift to serve in the absence of the Shop Steward. The Union will notify the Employer in writing of the duly designated Shop Stewards and alternates.

Section B

The Union agrees that the Shop Stewards and/or Union officials will work at their regular jobs at all times except when they are relieved to attend to the grievance procedure. Prior to leaving the work area, a Shop Steward and/or Union official will request permission from the supervisor. Shop Stewards and/or Union officials will not leave the work area during work hours without permission.

Section C

The Shop Stewards and/or Union officials shall not interfere with the management of the business or the work of any Employee, but may notify the Employer, file grievances, and also notify the Employee participating therein.

Shop Stewards and/or Union officials may not interview any Employee or otherwise conduct Union-related business with any Employee while such Employees is on working time, nor shall any Employee conduct Union-related business while on working time without permission. Subject to government rules and requirement, Shop Stewards and/or Union officials are authorized to remain on the premises for such reasonable periods as are required to meet their union responsibilities, and Employees whom a Shop Steward or Union official wish to interview may remain on the premises for such reasonable period following their shift as will enable the desired interview to take place.

Section D

Employer property, equipment and office facilities shall not be used to conduct any form of Union-related business, personal business, or on behalf of any other business, except where permitted by this Agreement. Employees who violate this section will be subject to disciplinary action.

ARTICLE 6 – GOVERNMENT REQUIREMENTS

SECTION 6.1 The Union agrees to cooperate with the Employer in all matters required by the Government, and the Union recognizes that the term and conditions of the Agreement are subject to certain priorities which the Government may exercise. The Union agrees that any actions taken by the Employer pursuant to a requirement of the Government or at the direction of the Government shall not constitute a breach of this Agreement. Nothing in this Agreement should be construed to prevent institution of any change prior to discussion with the Union where immediate change is required by the Government. The Employer will however, negotiate with the Union concerning the effects of any such change.

SECTION 6.2. If the Government directs that a specific Employee be removed from the contract or otherwise disciplined or reassigned, or any such action directed may be undertaken by the Employer and shall not subject to grievance or arbitration procedures of this Agreement. In the event that the Government expressly directs the removal, discipline or reassignment of a contract Employee, the Employer agrees to cooperate with the Union by providing it with all relevant information.

SECTION 6.3. It is recognized and acknowledged that the work performed under this Agreement is being performed at a Government military medical center, and it is therefore essential and expected that all Employees will act in a manner appropriate to such an environment. It is further recognized and acknowledged that the Government imposes specific requirements concerning the manner in which the work under this Agreement is to be performed, and it is essential and expected that all Employees comply with such requirements.

ARTICLE 7 – WAGES

Employees shall be paid wages, shift premiums and fringe benefits in accordance with the schedule of wages identified as Addendum A.

As reflected in Addendum A, Employee base wages shall be increased as follows:

Effective, April 1, 2021 - \$0.60 increase to base wage rates

Effective, April 1, 2022 - \$0.45 increase to base wage rates

Effective, April 1, 2023 - \$0.45 increase to base wage rates

ARTICLE 8 – SENIORITY/LENGTH OF SERVICE

SECTION 8.1. The Employee's length of service shall be computed from the date on which he/she is hired by the Employer, or his/her date of employment at Carderock Division of the Naval Services Warfare Center, whichever is longer.

SECTION 8.2. Layoffs will be determined by length of continuous services at the Carderock Division of the Naval Services Warfare Center; the Employees with the least amount of continuous service and ability to perform the job shall be laid off first. Employees who have been laid off less than twelve (12) months shall be recalled in the reverse order of layoff, subject to ability to perform the job. An Employee duly notified by the Employer to return to the job, must return to such job.

An Employee's continuous service shall be broken so that no prior period of employment shall be counted and seniority shall cease upon:

- (a) Justifiable discharge
- (b) Voluntary quitting
- (c) Absence for five (5) working days, unless excused by the Employer by reason of illness or other unexcused disability or other reasonable cause

- (d) Failure of an Employee to return to work upon recall with five (5) working days after written notice is sent by the Employer to their last known address.
- (e) Layoff of more than twelve (12) months.

ARTICLE 9 – GRIEVANCE PROCEDURE

SECTION 9.1. The parties to this Agreement, in the interest of resolving all disputes, complaints or grievances, in connection with the interpretation or application of the terms of this Agreement, have settled upon the following orderly and peaceful procedures. All grievances must be filed in writing with the other party within ten (10) calendar days after the incident on which the dispute is based occurred, unless it is a discharge in which case the grievance must be filed in writing with the other party within fifteen (15) calendar days after the incident on which the dispute is based. All grievances must be presented in writing and filed and processed in accordance with the following exclusive step procedures:

Step One: Employees are encouraged to try and resolve any possible grievances informally with their immediate Supervisor or Project Manager; either directly or through their Union Shop Steward. If the Employee is not able to resolve the matter, they may contact their Union Representative to request a formal grievance be filed. Consistent with the paragraph above, the Union Representative will have ten (10) calendar days from the date on which the incident is based to file a written Step One Grievance with the Project Manager. Likewise, the Employer may file a grievance by submitting it in writing within ten (10) calendar days from the date on which the incident is based, to the Union representative or business manager. If the grievance is not resolved at this level, the Party that filed the grievance may move the Grievance to Step 2.

Step Two: If the Grievance is not resolved in Step One, the Union Business Manager and the Employer's Human Resource Manager at the corporate level shall meet within ten (10) calendar days of the Step One conclusion. The Business Manager or his/her designee, will work with the Employer's Representative to see if it is possible to resolve the grievance. If the grievance is not resolved at this level, the matter shall be referred in writing by the Local Union Business Manager to the General President of the International Union or his/her designee with a copy to the Employer for a Step Three meeting. For grievances filed by the Union, If the grievance is not referred by the Union within ten (10) calendar days, the matter shall be closed and the Employer shall thereafter have no further obligations. For grievances filed by the Employer, if the Union does not submit the matter to the General President of the International Union or designee, or the matter is not resolved within ten (10) calendar days of the Step Three Meeting, the Employer may file for arbitration.

Step Three: Within ten (10) calendar days of the filing of Step Three Grievance, the Union's General President Representative shall meet with the Employers Corporate Representative in an effort to settle the grievance. If the grievance is not settled at this level, either party may demand and file for arbitration within an additional ten (10) calendar days. If neither party files for arbitration within the ten (10) calendar days, the grievance will be closed and the parties will have no further obligation to continue this grievance.

Arbitration: The party demanding arbitration shall file for arbitration with the Federal Mediation and Conciliation Service and request that it supply both the Employer and the Union with a list consisting of at least seven (7) individuals who would serve as arbitrator. The parties may then invoke the usual procedures to strike off objectionable names, starting with the party who demanded arbitration. Either party may request a second panel one time if they pay any fee involved. Any decision of the arbitrator must be based on the contract and the arbitrator may not add to or subtract from the terms of the agreement. The decision of the arbitrator shall be final and binding upon both parties. The cost of such arbitration and transcripts shall be shared equally by both parties. The arbitrator may not add to or subtract from the terms of this Agreement, nor shall the arbitrator impose on any party a limitation or obligation not set forth in this Agreement. The Employer's obligation to reinstate a grievant shall cease when the Employer is no longer the Contractor.

SECTION 9.2. The parties may select a mutually acceptable neutral party to act as a temporary or permanent arbitrator for disputes arising under the terms of this Agreement.

SECTION 3. The timelines of any of the Grievance Steps described above may be extended by mutual consent of the parties. Request to extend timelines shall not be unreasonably denied by either party.

ARTICLE 10 – DISCHARGE AND DISCIPLINE

SECTION 10.1. The Employer shall not discipline or discharge any employee without just cause. An Employee shall be subject to immediate discharge for cause for any of the following reasons:

- (a) Dishonesty, which includes material or intentional falsification of time cards, time clock, or time sheets, or other Company or government documentation.
- (b) Intoxication during working hours.
- (c) Use, possession, and/or distribution of illegal drugs, or being under the influence of illegal drugs during working hours or other violation of the Company's substance abuse policy.
- (d) Fighting while on the premises or threatening another individual.
- (e) Deliberate or reckless property damage that is significant or other such gross misconduct.
- (f) Not reporting to work, or over-staying an authorized leave of absence, without notifying the Employer for three (3) consecutive workdays.
- (g) A false statement made on the application for employment, or to the medical examiner with the intent to deceive.

- (h) Unauthorized possession of firearms, explosives or weapons within facilities.
- (i) Employees permanently restricted by the Government from entering the Government installation.
- (j) Sleeping on the job
- (k) Violation of a safety rules, policies or protocols that have been either provided, posted, or properly explained or trained by the Employer.
- (l) Disrespectful or unprofessional conduct to the Employer's customer that constitutes gross misconduct.
- (m) The conduct outlined above in subsections a-l is not intended to be a comprehensive and complete list of all misconduct that is immediately terminable for cause.

SECTION 10.2. It is agreed that each party shall treat the other with mutual respect and dignity. Except for conduct warranting immediate discharge under Section 10.1, the Employer will apply progressive discipline for lesser offenses and/or unsatisfactory job performance where warranted under the circumstances. Warning notices need not be for the same or similar conduct, infractions or performance for which Employees were previously disciplined. Warning notices (but not other disciplinary action) shall not be the basis for further discipline if no similar offense occurs within a twelve (12) month period.

SECTION 10.3. The Shop Steward shall be present at all disciplinary meetings of the Employees if requested by the Employee, and a shop steward is present.

ARTICLE 11 – HOURS OF WORK

SECTION 11.1. The term "Full-time Employees" as used in this Agreement, applies to those individuals who are regularly scheduled to work thirty (30) hours every week. The term "part-time Employees" applies to those individuals regularly scheduled to work less than thirty (30) hours every week.

Subject to the Employer's customer's needs, the Employer will make reasonable effort to arrange work schedules so that a maximum number of Employees will be off duty on Saturdays and Sundays, or have two consecutive days off within the workweek consistent with operational requirements. Nothing herein shall be construed or interpreted as a guaranteed number of hours of work each day or week.

SECTION 11.2. Overtime, when necessary, can be required and scheduled by the Employer and, except in cases of emergency or if overtime is unanticipated, will normally be offered to the most senior Employee whom the Employer determines has the appropriate skills and qualifications. If that Employee refuses overtime, it shall be offered to the next senior and so on through the seniority list until the work is undertaken or the list exhausted. In the event the list is exhausted, the Employer shall require the least senior Employee to work and if more than one Employee is

necessary, the assignment shall continue in reverse order.

SECTION 11.3. An Employee called in outside his/her regular work schedule shall be guaranteed a minimum of four (4) consecutive hours of work or pay in lieu thereof. A Full-time regular Employee who is called in on a non-scheduled workday will be guaranteed two (2) hours of work or pay in lieu thereof.

SECTION 11.4. Carderock Division of the Naval Services Warfare Center CLOSING: If the entire Carderock Division of the Naval Services Warfare Center is closed for whatever reason and not made available to any personnel of the Employer, and if the Employer is paid by the Government for days the entire Carderock Division of the Naval Services Warfare Center is closed, the employees also will be paid. If the Employer is not paid by the Government for such days, Employees will be on unpaid leave or will use available paid leave during authorized closures.

SECTION 11.5. PAY ERROR: When there is an error in the pay of an employee over \$50, the Employer will, whenever possible, correct the error within seven (7) working days from the date the Employee reports the error to his/her account manager. All other adjustments shall normally be made in the next payroll check.

SECTION 11.6 SNOW DAY: In instances of inclement weather where the Employer is required to assign persons for snow removal, such assignments shall be made from a volunteer list by seniority. Should the use of the list not produce the required number of persons the Employer may ask for volunteers or draft personnel using the least senior qualified person first.

SECTION 11.7. All Employees will be granted a five (5) minute grace period with the understanding that the grace period will be available no more than three (3) times within every quarter. After the third (3) time, employees will be subject to discipline. Additionally, even if an employee does not exceed three (3) tardy's in a quarter, any pattern of abuse, such as regular and repeated use of the grace period, shall result in progressive disciplinary action. The failure to clock in will subject an employee to disciplinary action.

ARTICLE 12 – UNION RIGHTS

SECTION 12.1 Unless not permitted by the government, the Employer shall provide space for Union literature. in a place convenient for Employee use. The bulletin board shall not be used for detrimental or inflammatory propaganda of any kind, nor shall it be used for the posting or distribution of payments or notices of political matters, advertising, nor for notices adversely reflecting upon the Employer or Government. The Union will not be held responsible for any of the above inappropriate postings, if the bulletin board is not enclosed and secured by key help by the Union. Abuse of this provision shall result in removal of the bulletin board.

SECTION 12.2. Upon reasonable notice to the Employer, the Union shall have the right to inspect relevant and applicable portions of an Employee's personnel file to the extent it is relevant to a pending disciplinary action, grievances, arbitration, or unfair labor practice charge from or about the Employee.

SECTION 12.3. Each Employee shall have the right to inspect his/her personnel file annually. The Project Manager will not deny this right unjustly.

SECTION 12.4. An Employee may request a leave of absence for serving the Union. The decision to grant a request for leave, and any terms and conditions attached to the leave, are subject to the sole discretion of the Employer.

SECTION 12.5. Stewards and Union officers shall not interfere with the management of the Employer's business or the work of any Employee, but may advise the Employer of any alleged violations of the Agreement. Stewards and Union officers may not interview any Employee or otherwise conduct Union-related business with any Employee while such Employee is on duty, unless prior approval is given by the Employer. Nor shall any Employee conduct Union-related business while on duty without permission. The Union agrees to provide at least two (2) hours advanced notice to the Employer prior to Union officers or representatives accessing the facility when visiting members working for NJS JV. The Union agrees that it shall not cause any disruptions while on premises and shall meet with Employees only during non-working time and in non-working locations (i.e. designated breakrooms, cafeterias, parks, parking lots or other areas permitted by the government).

SECTION 12.6. Subject to government rules and requirements, Stewards are authorized to remain on the premises for such reasonable periods as are required to meet their union responsibilities, and Employees whom a steward or union official wish to interview may remain on the premises for such reasonable period following their shift as will enable the desired interview to take place. Employer property, equipment and office facilities shall not be used to conduct any form of Union-related business without prior approval by the Employer. Employees who violate this section will be subject to disciplinary action.

ARTICLE 13 – HOLIDAYS

SECTION 13.1. Except for Employees regularly scheduled for weekend and holiday work, the Employer shall grant to all Employees the following holidays off with pay:

New Year's Day, Martin Luther King's Birthday, George Washington's Birthday, Memorial Day, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, Christmas Day, Employee's Birthday, and all future holidays declared as legal by the United States Congress or by Executive Proclamation provided the Contracting Officer at the site confirms that the Employer is not obligated to perform services on that day or that only a skeleton crew is needed. If, however, the Contracting Officer declares that it is a regular scheduled workday, then it shall not constitute a holiday.

SECTION 13.2. Except for Employees regularly scheduled for weekend and holiday work, an Employee required to work on any one of the holidays listed above shall receive holiday pay and shall also be paid at the straight time rate for each hour worked on the holiday.

SECTION 13.3. When a legal holiday covered by this Agreement falls on an Employee's day off

from his/her regular schedule, the Employee shall be compensated a full day at his/her straight time hourly base rate of pay, or in lieu thereof the Employee shall receive a day off with pay within a period two weeks before or after such holiday.

SECTION 13.4. In order to be eligible for holiday pay, an Employee must work all of his/her scheduled hours on his/her scheduled workday before and after the holiday, unless he/she is on a previously scheduled vacation or within the grace period guidelines of Section 11.8 or granted off or granted early leave by Employer or agent of the Employer.

SECTION 13.5. An Employee who is assigned to work on a holiday and refuses or fails to report to work shall be subject to discipline at the Employer's discretion.

SECTION 13.6. Holiday pay shall not be used for the purpose of computing overtime.

ARTICLE 14 – VACATION

SECTION 14.1. Employees shall receive paid vacation as set forth on Addendum A.

SECTION 14.2. Except as described in Section 14.3, vacation shall be with pay at the Employee's current hourly base rate of pay, based on the regularly scheduled number of hours worked per day. Each Employee shall be given vacation at the time mutually agreed upon by the Employee and the Employer. The Employer in determining vacation preference shall consider seniority. Once the vacation period is authorized and scheduled, the time for taking such vacation shall not be changed unless the change is mutually agreed upon between the Employee and the Employer.

SECTION 14.3. With regard to Employees who work an irregular schedule of weekly hours which is dependent upon workload (as agreed to by signatories to the agreement), vacation pay shall be calculated on the basis of the average hours worked each week in the previous twelve (12) months of employment.

SECTION 14.4. Vacation is earned on the employee's anniversary date. There is no accrual or vesting of vacation prior to the employee's anniversary date.

SECTION 14.5. Length of service includes the whole span of continuous service with the present (successor) contractor wherever employed, and with predecessor contractor in the performance of similar work at the same federal facility. Vacation pay shall be payable in accordance with the Employer's regular pay schedule. Employees have to give at least a thirty (30) days advance notice to management for vacation with pay.

SECTION 14.6. When a holiday occurs during the Employee's vacation, the holiday will be paid as holiday pay not as vacation pay.

SECTION 14.7. The Employee may use vacation leave in increments of less than one week for purposes of a personal emergency or extended sick leave. Vacation time can only be used

for extended sick leave provided the Employee has used up his/her accrued sick leave and provided he/she provides a doctor's excuse when requested by the Employer. The Employee's request for vacation leave shall not be unreasonably denied provided the Employee notifies the Employer in a timely manner.

SECTION 14.8. There shall be no carryover of vacation from year to year. The Employer agrees to pay all employees for all unused earned vacation upon separation on the next practical pay day for all Employees hired prior to the effective date of this Agreement. For all new Employees hired after the effective date of this Agreement, Employees will be paid for all accrued but unused vacation time for Employees who are laid off, terminated, or resign with at least two weeks advanced notice of resignation to the Employer.

ARTICLE 15 – LEAVE OF ABSENCE

SECTION 15.1. An Employee who is a member of the military or reserve will be granted all leave and other rights provided by law.

SECTION 15.2. An Employee may take leave under the Family and Medical Leave Act ("FMLA leave") in accordance with applicable law and the Employer's FMLA Policy, in which case provisions of that policy will supersede any provision of this Article which is inconsistent with that Policy.

SECTION 15.3. Except for military leave or FMLA leave, Employees may be granted unpaid leaves-of-absence at the sole discretion of the Employer for a period of up to 30 days, unless otherwise required by applicable law. Such leave-of-absence may be granted for medical reasons and shall not prejudice seniority status for purposes of layoffs and recalls. The Employer may require documentation (including documentation from a treating physician for medical leaves of absence) to the extent permitted by applicable law. All accrued but unused paid leave (vacation and sick) shall run concurrently with any leaves of absence.

ARTICLE 16 – BEREAVEMENT LEAVE

SECTION 16.1. An Employee who has a death in his/her immediate family, defined as: mother, father, spouse, son, daughter, sister, brother, grandparents, mother and/or father-in-law, grandchildren, or a member of the immediate family either through adoption or guardianship, shall be paid up to and including three (3) days' regular pay for time missed within one (1) week of the funeral. The number of hours per day for which the Employee shall be entitled to payment shall be equal to the number of hours per day for which the Employee would otherwise have been scheduled to work. Employees will be required to provide proof (funeral itinerary/obituary) to management in order to be paid bereavement leave.

SECTION 16.2. Should such a funeral take place more than 100 miles from the Carderock Division of the Naval Services Warfare Center, requiring travel time in excess of three (3) days, the Employee may have two (2) additional days off without pay, for the purpose of attending such funeral. Employees may request additional leave, and such leave will be granted at the sole

discretion of the Employer.

ARTICLE 17 – JURY DUTY

SECTION 17.1. In the event an Employee is called for jury duty, the Employer will grant court leave not to exceed eight (8) hours per day. If called, the Employee shall notify the Employer promptly and submit a true copy of the summons for jury service. Upon completion of service, the Employee shall present to the Employer evidence of time spent on such duty, together with any jury fees received. The Employer will pay the difference between the jury fees received and the Employee's daily earnings up to five (5) days.

ARTICLE 18 – HEALTH AND WELFARE

The Employer shall contribute for each hour for which an employee covered by this Agreement is entitled to pay an amount, as set forth in Addendum A, to the Man U Services Health and Welfare Fund in accordance with Addendum B to this Agreement. The Employer and the Union hereby adopt the Agreement and Declaration of Trust establishing said Fund, a copy of which has been provided to each, and agrees to comply therewith.

ARTICLE 19 – RETIREMENT

The Parties incorporate by reference the Side Letter Agreement entered into between J&J Maintenance Services Inc. d/b/a J&J Worldwide Services, Inc. and the Laborers' International Union of North America, effective December 31, 2020, as well as the Memorandum of Understanding entered into between Nugate Group LLC and Laborers' International Union of North America, effective February 17, 2020.

As set forth in Addendum A, the Employer agrees to modify the hourly contributions for Pension as follows:

April 1, 2021: \$1.52

April 1, 2022: \$1.55

April 1, 2023: \$1.58

Addendum B, entitled, "**PENSION, HEALTH AND WELFARE, AND TRAINING BENEFIT FUNDS**," is hereby incorporated by reference into this Collective Bargaining Agreement.

ARTICLE 20 – TRAINING

The Employer shall contribute for each hour for which each employee covered by this Agreement is entitled to pay, to the **Laborers-Employers Service Contract Education and Training Trust Fund** at the rate set forth in Addendum A to this Agreement. The Employer and the Union hereby adopt the Agreement and Declaration of Trust establishing said Fund, a copy of which has been provided to each, and agrees to comply therewith.

ARTICLE 21 – SICK LEAVE & PERSONAL DAYS

SECTION 21.1. All employees shall be entitled to accrue paid sick leave at the rate of 1 hour of paid sick leave for every 30 hours worked. Employees may accrue a maximum of 56 hours of paid sick leave each accrual year. For purposes of this policy, the accrual year is the 12-month period beginning on January 1. Employees may carryover up to 56 hours of accrued, unused paid sick leave from one accrual year to the next. Employees may have a maximum of 56 accrued hours of paid sick leave available at any point in time. If an employee accrues 56 hours of paid sick leave, the Employee will stop accruing paid sick leave until the employee uses paid sick leave and the balance drops below 56 hours. Accrued but unused sick leave hours are not paid out at the end of the year and are not paid out upon separation of employment for any reason.

SECTION 21.2. An Employee may use paid sick leave for an absence resulting from the following:

- The Employee's own physical or mental illness, injury, or medical condition;
- Obtaining diagnosis, care, or preventive care from a health care provider by the Employee;
- Caring for the Employee's family member with a physical or mental illness, injury, or medical condition or for obtaining diagnosis, care or preventative care from a health care provider by the family member, or the family member is otherwise in need of care;
- Domestic violence, sexual assault, or stalking, where the Employee or a family member is a victim, including to obtain counseling, seek relocation, seek assistance from a victim services organization, or take legal action.

For purposes of this policy, "family member" shall include the Employee's child, parent, spouse, domestic partner, or any other individual related by blood or affinity whose close association with the Employee is the equivalent of a family relationship.

Employees must use paid sick leave in 1-hour increments.

Employees will receive regular pay and benefits when using paid sick leave, but Employees will not continue to earn additional paid sick leave during that time.

If the need for leave is for preventative care or is otherwise foreseeable, the Employee is encouraged to make reasonable efforts to schedule absences so as not to unduly disrupt operations.

If an Employee with accrued paid sick leave takes leave under the Family and Medical Leave Act policy, all accrued paid sick leave must be used before leave is unpaid. Paid sick leave will run concurrently with Family and Medical Leave.

All unused sick leave and/or earned vacation must be used before an employee will be permitted to use unpaid leave for any reason within the year. There will be no carry over other than in SECTION 21.1 above, and no pay out of unused sick leave.

SECTION 21.3. An Employee requesting sick leave for the reasons in SECTION 21.2 must

contact the Employer by contacting their direct supervisor and informing him/her of the need for leave for a purpose described in this policy and the anticipated duration of the leave, if reasonably feasible. The Employee shall make a good faith effort to provide a reasonable estimate of the length of the requested absence. When an Employee wants to use accrued paid sick leave and the reason for the absence is foreseeable, the Employee must request the leave at least 7 calendar days in advance of the absence. When the need for the absence is not foreseeable, Employees must request to use accrued paid sick leave as soon as practicable, which in most cases should be at least 2 hours before the start of the Employee's shift.

SECTION 21.4. When an Employee is absent for 3 or more consecutive full days, the employee must provide certification or documentation from a health care provider. If the paid sick leave is used for an absence resulting from domestic violence, sexual assault or stalking, documentation may be from a health care provider, counselor, victim representative, attorney, clergy member, family member, or close friend; and self-certification is also permitted.

All medical documentation and documents related to domestic violence, sexual assault and stalking will be kept confidential unless disclosure is required or permitted by law.

An Employee who does not provide medical certification that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

SECTION 21.5. In addition to the paid sick leave described in this Article, all Employees who regularly work 7 hours or less a day will receive four (4) personal days and all Employees who regularly work 7.5 hours a day or more will receive five (5) personal days, which shall be provided to Employees on January 1 of each year. For purposes of this provision, the Employer shall determine an Employee's regular work hours on January 1 of each year by averaging the number of hours the Employee worked over the six month period of July 1 to December 31. If an Employee did not work for the Employer for that entire six month period, the calculation will be based on whatever period of time the Employee worked during that six month period. Employees hired mid-year (i.e. after January 1) shall receive a prorated amount of four (4) personal days for the calendar year in which they are hired.

Personal days may be used for any reason and are subject to management approval, which shall not be unreasonably denied. An Employee who uses personal days must provide the Employer with notice of his/her anticipated absence as soon as the need to be absent becomes known to the employee, regardless of the length of the anticipated absence. Generally, this should be no later than two (2) hours prior to the start of their shift. Failure to provide such notice will result in disciplinary action and in the forfeiture of personal days in an amount equal to the time the Employee was absent.

Accrued but unused personal days do not carryover from year-to-year and are not paid out at the end of the year or upon separation of employment for any reason. Employees who are absent for reasons other than vacation or a leave of absence must notify the Employer at the time of calling-out whether they intend to use personal days or sick days to cover their absence. If the Employee does not specify, personal days will be designated first. If an Employee is absent for more than three days for illness or injury, the employee must provide certification or documentation from a health care provider. Upon reasonable request, the Employer reserves the right to require a physician's statement for absences due to illness or injury and/or to require the Employee to be

examined by an Employer-appointed physician at the Employer's expense. An Employee who does not provide medical certification that he/she is able to return to work, if required or requested under this Article, will not be permitted to return to work.

SECTION 21.6. All unused sick leave, personal days, and/or earned vacation must be used before an employee will be permitted to use unpaid leave for any reason within the year.

SECTION 21.7. Engaging in fraud in connection with paid sick leave, personal leave, and/or obtaining paid sick leave under false pretenses may result in discipline up to and including termination of employment.

ARTICLE 22 – GENERAL WORKING CONDITIONS

SECTION 22.1. UNIFORMS: The Employer agrees that if any Employee is required to wear any type of uniform as a condition of his/her continued employment, such uniforms shall be furnished by the Employer and maintained by the Employee. Employee will be responsible for the cost of uniform replacement due to loss, neglect or misuse. Normal wear and tear are acceptable.

ARTICLE 24 – SAVINGS CLAUSE

SECTION 24.1. Should any court find any part of this Agreement to be invalid, it shall not invalidate the remaining provisions.

ARTICLE 25 – SUCCESSIONSHIP

SECTION 25.1. The Employer will promptly furnish the Union notice of termination of any of its cleaning contracts at this location and will promptly thereafter meet with the Union to negotiate the effects of such termination on bargaining unit Employees.

ARTICLE 26 – SUBCONTRACTING

SECTION 26.1. The Employer will provide reasonable advance notice of intent to subcontract any of the work covered by this Agreement, except for work that is presently sub-contracted (including cleaning windows and cleaning garages).

ARTICLE 28 – NO STRIKE AND NO LOCKOUT

SECTION 28.1. The Union, its officers, agents, representatives and members shall in no way, directly or indirectly, authorize, call, cause, assist, encourage participate in, ratify, condone or sanction any strike, sympathy strike, sit down, slow down, picketing, boycott, cessation or stoppage of work, or other interference or interruption of work during the duration of this Agreement. The Employer shall have the right to discharge, for cause, with loss of all rights and benefits, suspend, or otherwise discipline any or all employees who incite, induce, encourage, or participate in any of the above-enumerated activities.

SECTION 28.2. During the term of this Agreement, the Employer shall not engage in any

lockout of its employees.

ARTICLE 29- SUCCESSORS AND ASSIGNEES

SECTION 29.1. This Agreement shall be binding upon and shall inure to the benefit of the parties hereto, their successors and assignees to the extent required by applicable law.

ARTICLE 30 – DURATION OF AGREEMENT

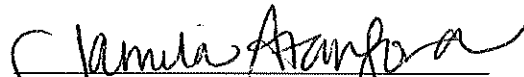
The Parties agree on a three-year collective bargaining agreement, effective as of the date of execution and expiring three years thereafter.

This Agreement, entered into this 22nd day of February 2021 shall be binding upon the parties hereto, their successors in the employing industry and their administrators, executors and assigns, and shall remain in full force and effect until February 21, 2024 and shall continue in effect from year to year thereafter, unless written notice is given by the Union or the Employer ninety (90) days prior to the expiration date of its desire to modify, amend or terminate this Agreement.

Laborers' International Union of North America

NJS Joint Venture, LLC


Terry O'Sullivan, General President


Jamila Stanford, Managing Partner
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San Jose, CA 95112
(408) 278-9911
jamila@nugategroup.com

2-25-2021
DATE

23 FEB 2021
DATE

Christopher Demers
Christopher Demers, Director of HR
J&J Worldwide Services

23 Feb 2021
DATE